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that such additional facilities be privately financed.

4. In the exercise of the functions, powers and duties transferred by this order, the Chairman of the War Production Board may consult the War Department and the Navy Department with regard to facilities required primarily for military or naval use, and other departments and agencies with regard to facilities required primarily for uses within their respective jurisdictions.

5. Such civilian personnel, property, and records used primarily in the administration of the functions, powers and duties transferred by this order, and so much of the unexpended balance of appropriations, allocations and funds available to the War Department and the Navy Department for the said purposes as the Director of the Bureau of the Budget shall determine, shall be transferred to the Chairman of the War Production Board on such date or dates as the Director of the Bureau of the Budget shall determine, for use in connection with the exercise of the functions, powers and duties so transferred.

FRANKLIN D ROOSEVELT

THE WHITE HOUSE,
December 17, 1943.

[F. R. Doc. 43–20168; Filed, December 18, 1943; 4:37 p. m.]

EXECUTIVE ORDER 9395B

[POSSESSION OF LEATHER MANUFACTURING PLANTS LOCATED IN SALEM, PEABODY, AND DANVERS, MASSACHUSETTS]

By virtue of the power and authority vested in me by the Constitution and laws of the United States, as President of the United States and Commander-in-Chief of the Army and Navy of the United States, it is hereby ordered and directed as follows:

The Secretary of War is authorized immediately to take possession of and operate any or all of the following plants:

Hunt-Rankin Leather Company, Summit Street, Peabody, Massachusetts.

Leach-Heckel Leather Company, 72 Flint Street, Salem, Massachusetts.

John Flynn & Sons, 80 Boston Street, Salem, Massachusetts.

B. E. Cox Leather Company, 22 Hardy Street, Peabody, Massachusetts.

Morrill Leather Company, North Main Street, Peabody, Massachusetts.

Nathan H. Poor Company, 73 Lowell Street, Peabody, Massachusetts.

Trimount Leather Company, 70–80 Foster Street, Peabody, Massachusetts.

Verza Tanning Company, 107 Foster Street, Peabody, Massachusetts.

Richard Young Company, 4 Union Street, Peabody, Massachusetts.

Creese & Cook Company, 33 Water Street, Danvers, Massachusetts.

Helburn Thompson Company, 18 Goodhue Street, Salem, Massachusetts.

Puritan Tannery, Inc., 16 Proctor Street, Salem, Massachusetts.

Salem Leather Company, 3 Tremont Place, Salem, Massachusetts.

through and with the aid of such person or persons or instrumentality as he may designate, and in so far as may be necessary or desirable, to produce the war materials called for by the Company's contracts with the United States, its departments and agencies, or as may be otherwise required for the war effort, and do all things necessary or incidental to that end. The Secretary of War shall permit the management to continue with its managerial functions to the maximum degree possible consistent with the aims of this order. The Secretary of War shall make employment available under existing collective bargaining contracts to all workers who seek employment in the plant to the extent that they are needed.

Possession and operation hereunder shall be terminated by the President as soon as he determines that the plant or plants above listed can be operated without the protection provided by this order.

FRANKLIN D ROOSEVELT

NOVEMBER 20, 1943.

[F. R. Doc. 43–20120; Filed, December 17, 1943; 4:42 p. m.]

EXECUTIVE ORDER 9403

RELINQUISHING POSSESSION OF LEATHER MANUFACTURING PLANTS LOCATED IN SALEM, PEABODY, AND DANVERS, MASSACHUSETTS

WHEREAS on November 24, 1943, the Secretary of War, acting pursuant to an Executive Order dated November 20, 1943,[1] took possession of thirteen leather manufacturing plants specified in the said order and located in Salem, Peabody, and Danvers, Massachusetts; and

WHEREAS since that date the Secretary of War has retained possession of and operated the said plants pursuant to said Executive Order; and

WHEREAS I now find that the productive efficiency of the said plants prevailing prior to the taking possession thereof has been restored:

NOW, THEREFORE, by virtue of the authority vested in me by the Constitution and laws of the United States, particularly the War Labor Disputes Act (Public Law 89, 78th Congress), I hereby direct the Secretary of War to relinquish possession of the said plants to the respective persons from whom possession was taken, and to issue the necessary orders for carrying out this direction: *Provided, however*, that nothing contained herein shall preclude the Secretary of War from requiring the submission of information relating to operations during the period of Government possession and control if he shall deem such information necessary for the protection of the interests of the Government or for the conclusion in an orderly manner of the administration of the said Executive Order.

FRANKLIN D ROOSEVELT

THE WHITE HOUSE,
December 13, 1943.

[F. R. Doc. 43–20121; Filed, December 17, 1943; 4:42 p. m.]

[1] Executive Order 9395B, *supra*.

EXECUTIVE ORDER 9404

AUTHORIZING THE GOVERNOR OF THE PANAMA CANAL TO ACQUIRE AND DISPOSE OF PROPERTY

By virtue of and pursuant to the authority vested in me by Title II of the Second War Powers Act, 1942, approved March 27, 1942 (56 Stat. 176), the Governor of The Panama Canal, or any officer of The Panama Canal acting in that capacity in the absence or disability of the Governor, is hereby authorized to exercise the authority contained in the said Title II of the Second War Powers Act, 1942, to acquire, use, and dispose of any real property, temporary use thereof, or other interest therein, together with any personal property located thereon, or used therewith, that shall be deemed necessary for military, naval or other war purposes.

FRANKLIN D ROOSEVELT

THE WHITE HOUSE,
December 17, 1943.

[F. R. Doc. 43–20123; Filed, December 17, 1943; 4:47 p. m.]

EXECUTIVE ORDER 9405

AMENDING SUBDIVISION IX OF SCHEDULE A OF THE CIVIL SERVICE RULES

By virtue of the authority vested in me by section 2 of the Civil Service Act (22 Stat. 403), it is ordered that paragraph 9 of Subdivision IX of Schedule A of the Civil Service Rules be, and it is hereby, amended to read as follows:

IX. DEPARTMENT OF AGRICULTURE

9. Farm Credit Administration: Positions in the Federal Intermediate Credit Banks, the Production Credit Corporations, the Federal Land Banks, the Banks for Cooperatives, and positions filled by joint officers and employees for these four institutions.

FRANKLIN D ROOSEVELT

THE WHITE HOUSE,
December 17, 1943.

[F. R. Doc. 43–20122; Filed, December 17, 1943; 4:47 p. m.]